

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN GUYANA

Complete Community Opposition How-To

This guide uses the terms you'll actually run into in Guyana — the environmental permit and its conditions, the EIA and public participation, the EPA, the constitutional right to a healthy environment, the courts up to the Caribbean Court of Justice, Amerindian land rights — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

In a country now transformed by one of the largest oil finds of the century, two ordinary citizens took on the most powerful company operating in Guyana — and, at first, won. **ExxonMobil's** permit for its offshore **Liza** project required, as **Condition 14**, that the company carry insurance for an oil spill *and* provide an **unlimited parent-company guarantee** for everything the insurance didn't cover. The Environmental Protection Agency wasn't enforcing it. So **Frederick Collins and Godfrey Whyte** took the EPA to the **High Court** — and in 2023, Justice Sandil Kissoon ruled in their favour in a scorching judgment: the regulator, he found, had "**abdicated its responsibilities**," was "**submissive**," and had left "Guyana and its people in grave potential danger of calamitous disaster." He ordered Exxon to provide the unlimited guarantee or have its permit suspended. Two private citizens had forced a reckoning on an oil supermajor and its regulator — proof of what the courts and the constitution can do here.

Frederick Collins and Godfrey Whyte, two ordinary citizens, took ExxonMobil and its regulator to court over an unenforced permit condition — and the tools they used are available to communities across Guyana. A major project needs an **environmental permit** from the **EPA**, resting on an **EIA** with public participation — and the **permit's conditions are enforceable**, as the Collins–Whyte case showed. The Constitution recognises a **right to a healthy environment**. The courts run from the **High Court** to the **Court of Appeal** and the **Caribbean Court of Justice (CCJ)**; protest, petition, and litigation are lawful. Indigenous (**Amerindian**) communities hold land rights under the **Amerindian Act**. And a free press and international attention reach an oil supermajor that cannot escape scrutiny. But these tools have real limits, and this guide states them plainly. Collins and Whyte won a scorching first-instance judgment — the regulator had "abdicated its responsibilities" — but Exxon and the EPA **appealed and won a stay**; the **Attorney-General intervened on Exxon's side**, arguing the state would lose oil revenue; and the **Court of Appeal ultimately overturned** the unlimited-guarantee order, leaving Guyana on the hook for the rest. The case shows exactly what a community can achieve here — and how, in a state now dependent on oil, the government itself may line up behind the company against its own environmental law. So aim to enforce the permit's own conditions, expose the regulator's failures, and win real protections, clear-eyed that a first-instance win can be reversed.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Guyanese project needs its **environmental permit** (and a sound **EIA**); the **permit's conditions must be met and enforced**; it must respect the **constitutional right to a healthy environment** and **Amerindian land rights**; and it can be challenged in the **courts** up to the **CCJ**. Every one of those is a link you can grab — and the permit conditions are the one Collins and Whyte grabbed. **Find the one closest to your hand**

and pull.

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If a permit condition is being ignored, that's a sharp, proven lever** — the Collins–Whyte case turned on Condition 14, and any citizen can bring it.
- **If the EIA is defective or a right is threatened, the courts and the constitution genuinely bite.**
- **If it touches Amerindian land, the Amerindian Act's land rights are a real lever.**
- **If the state's oil revenue is at stake, expect the government to side with the company, and a first-instance win to be appealed** — aim honestly at enforced conditions, real protections, exposure, and delay, and be ready for the appeal.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the permit conditions, the EIA participation, the courts, Amerindian rights — and **run every front at once**: the documents, the participation, the courts, the community, the press. That's how Collins and Whyte forced their reckoning.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental permit**, issued by the **EPA** on the basis of an **EIA** (with public participation for significant projects), and carrying **conditions** the holder must meet. Sector agencies grant the petroleum, mining, or forestry rights. **Amerindian** communities hold title and rights over their lands under the **Amerindian Act**. And above all sit the **courts** — the High Court, the Court of Appeal, and the **Caribbean Court of Justice** — which review the legality of decisions and enforce permit conditions and rights. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The EIA and participation. A significant project needs an **EIA**, with public participation. *Your opening* — and it arms every later step: take part, put your objections on the record, and attack the assessment's flaws.

The permit and its conditions. The EPA issues the permit with conditions. *Your opening* — the decisive one: a defective permit can be challenged, and — the Collins–Whyte lever — **an unenforced condition can be taken to court**, any citizen forcing the regulator to do its job.

Construction and operation. *Your opening*: breaches of the conditions, and harm — enforceable in the courts.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — an oil supermajor and its partners have vast reputations and investors. **What the permit requires and whether it's met** — an unmet condition is your sharpest, most proven lever. **What it still lacks or threatens** — a defective EIA, a threatened right, Amerindian land: the soft spots.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EPA** issues and is meant to enforce the permit — and can be taken to court when it doesn't. The **courts**, up to the **CCJ**, enforce conditions and rights. The **Amerindian** authorities and the Amerindian Act protect Indigenous land. And Guyana's **environmental and Indigenous organisations, its courageous lawyers, and a free press with international reach** are the forces that reach furthest — as Collins, Whyte, and their lawyers showed.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a permit condition is unmet, whether the EIA is defective or a right threatened, and how much oil revenue the state is protecting.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / objections in the EIA	15–35%	during assessment	low	On record; conditions or a redo
Enforce an unmet permit condition (court)	30–55%	months–2 yr	low–mod	Regulator forced to act; condition enforced
Constitutional right to a healthy environment	25–50%	1–2 yr	mod	Right protected; act restrained
Amerindian land-rights lever	25–50%	varies	low	Project stalled on Indigenous land
Appeal through to the CCJ	25–50%	1–3 yr	mod	Final ruling (can go either way)
Press + international attention	30–55%	months–yr	low	Pressure on the company; scrutiny
Everything together (unmet condition, right, world watching)	35–60%	1–3 yr	mod	Enforced, protected, delayed, exposed
Everything together (oil revenue at stake, state aligned)	15–40%	1–3 yr	mod	First-instance win; then contested on appeal

The levers that move the needle most are **enforcing a permit condition**, the **constitutional right to a healthy environment**, and **Amerindian land rights**, backed by the courts and the press. Collins–Whyte shows the ceiling (a citizen victory over an oil giant) and the honest floor (the win overturned on appeal as the state defended its oil revenue). So aim for enforced conditions, real protections, exposure, and delay — and be ready to carry a case, and lose ground, on appeal.

On cost: participating and documenting are cheap; and the permit-condition route can be brought by ordinary citizens, as it was by Collins and Whyte. Courageous lawyers have taken these cases on. The great obstacle isn't cost — it's the state's interest in oil revenue, which can put the government on the company's side.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this unmet condition, this defective EIA, this threatened right — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its partners, its financiers.
- 2. Where is it, and what does it touch?** Map it over the sea and coast, rivers and water, **Amerindian lands**, forests, and communities. **An oil-spill risk to the coast and sea, and Amerindian land, are among your sharpest levers** — the Collins–Whyte case turned on spill liability.
- 3. What stage is it at, and what's the next deadline?** Is the EIA in participation? Has the permit issued (with conditions to enforce)? These openings are time-bound.
- 4. What does the permit require, and is it met?** Read the **conditions** closely — an unmet one, as at Condition 14, is your sharpest, most proven lever.
- 5. Who else is affected, and who already opposes it?** Coastal and fishing communities, Amerindian communities, environmental organisations, courageous lawyers. Collins and Whyte were two citizens who acted.

What this looks like in real life. A community learns an oil or mining project threatens its coast, water, or Indigenous land, with a permit whose conditions aren't being enforced. The five questions yield: an oil or mining company and its partners; a spill or water risk, perhaps on Amerindian land (the levers); an EIA in participation or a permit issued; a permit condition unmet; and citizens and lawyers ready to act. That's the Collins–Whyte pattern — find the unmet condition, and take the regulator to court.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the environmental permit **and its conditions**, the enforcement record (or lack of one), any Amerindian land records. Read the permit's conditions line by line — an unmet one is your case, as Condition 14 was. Then read the EIA for flaws — an understated spill or water risk, an ignored alternative, a right or Indigenous land brushed over.

Layer two: the ground truth. Dated, located photographs and video of the coast, sea, rivers, forests, and communities at risk — baseline images most of all — and the testimony of affected fishers and residents.

Layer three: the map of risk and rights. Lay the project over the coast and sea, water, Amerindian lands, and communities, so the spill and water risk and the Indigenous-land lever are visible. Walking into the courts or the press with the permit conditions, the EIA, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the environmental permit and its conditions, the enforcement record, Amerindian land records** — from the EPA and the relevant authorities.
- **The permit conditions, read line by line** — the unmet one is your sharpest lever.
- **Ownership and financing** — the company, its partners, and financiers.
- **The risk-and-rights map** — coast and sea, water, Amerindian lands, and communities, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' and fishers' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Collins and Whyte showed that even two determined citizens can matter. Build in four moves.

Start with a tight core. The people most affected — fishers, coastal and riverine communities, Amerindian communities — a few tireless organisers, and respected local figures.

Find your lawyers early. Guyana's fights have been carried by courageous lawyers who take on the oil giant and its regulator. Reach the environmental lawyers and organisations who bring these cases — they are how citizens win here.

Centre Amerindian leadership where it applies. Where Amerindian land and the Amerindian Act are engaged, those communities hold strong legal ground; build the campaign around supporting that leadership, at their direction.

Build to last, and reach the world. Guyanese fights, and the appeals, run for years, against a state protecting its oil revenue. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and cultivate the international attention an oil supermajor cannot escape.

STEP 4: LEGAL CHALLENGES, PERMIT CONDITIONS & RIGHTS

Law is Guyana's sharpest lever, because the courts genuinely enforce permit conditions and constitutional rights — as citizens have proven.

Enforce the Permit's Conditions — the Collins–Whyte Lever

The most proven Guyanese route is to **enforce the environmental permit's own conditions**. Read them closely; where one is unmet and the EPA isn't enforcing it — as with Exxon's Condition 14 — **any citizen can take the regulator to court** to compel enforcement, and may win a landmark judgment. This is your sharpest, most accessible lever.

The EIA, the Courts, and the Right to a Healthy Environment

Take part in the **EIA** and attack its flaws; a defective permit can be challenged in the **High Court**, on up to the **Court of Appeal** and the **Caribbean Court of Justice**. And the Constitution's **right to a healthy environment** gives a further ground to restrain a project that threatens it.

Amerindian Land Rights

Where a project touches **Amerindian land**, the **Amerindian Act** gives Indigenous communities title and rights — a real lever to stall or condition a project on their territory, exercised at those communities' direction.

The Honest Limits

Straight talk: the permit-condition route and the courts are powerful, and citizens have won — but the state's oil revenue is a heavy counterweight, the government may side with the company (as the Attorney-General did), and a first-instance win can be **overturned on appeal** (as Collins–Whyte largely was). So use the strong tools — the permit conditions, the EIA, the courts to the CCJ, the constitutional right, Amerindian rights — pair them with the press and international attention, and count enforced conditions, real protections, a forced reckoning, exposure, and delay as wins, while preparing for the appeal.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

An unmet condition becomes a court case. Not "we oppose the oil project" but "*the permit's Condition [X] is not being met, and the EPA is not enforcing it — a citizen can compel it, as Collins and Whyte did.*"

A defective EIA becomes a challenge. "*The assessment understated the spill and water risk — the permit is unsound.*"

A right becomes a claim. "*This threatens our constitutional right to a healthy environment.*"

Amerindian land becomes a shield. "*This is titled Amerindian land, and the Amerindian Act protects our rights over it.*"

Match it to the venue: the objections to the EIA; the unmet condition to the courts against the EPA; the defective permit and the right up through to the CCJ; the Amerindian land to those communities and the courts; the risk and the harm to the press.

STEP 5: MEDIA STRATEGY

In Guyana, publicity — especially international — is a powerful lever, because it reaches an oil supermajor's investors and reputation, which it cannot escape, and it exposes a captured regulator. A free press makes the media front central.

Lead with the coast, the sea, and the people, not procedure. Not "the permit condition was unmet" but "the sea and coast our fishing communities depend on, left exposed to a spill because the regulator wouldn't do its job." Use your strongest material: dated photographs, the map of the risk, community voices, and any court judgment banked (Justice Kissoon's words carried far).

Work several audiences at once. Local and national press build domestic pressure; international media and NGO networks reach the oil giant's shareholders and its home public, where it is most exposed. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and invite a lawsuit. And protect people — get legal advice, and let the community shape the story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the EPA).

Subject: Request for the permit and enforcement records — [project].

"We, residents of [place], request the EIA, the environmental permit and its conditions, and the enforcement record for [project] at [location]. [Contact.]"

8B — Objection in the EIA participation.

Subject: Objection — EIA for [project].

"We, residents of [place], object to [project]: [the EIA understates the spill/water risk; it ignores our coast and fisheries; it brushes over Amerindian land]. We ask that the permit be refused or conditioned. [Attach evidence.]"

8C — Demanding enforcement of a permit condition (to the EPA).

Subject: Enforcement of Condition [X] — [project].

"We report that the holder of [project]'s permit is not meeting Condition [X]: [specifics], and the EPA is not enforcing it. We ask the EPA to issue an enforcement notice, failing which we will seek an order from the court. [Attach evidence.]"

8D — To a lawyer (court action).

Subject: Possible court action — [project] permit / Condition [X].

"Our community faces [project], whose permit Condition [X] is unmet and unenforced, and [whose EIA is defective / which threatens our rights]. We ask your advice on compelling the EPA and challenging the permit, as in Collins and Whyte. [Contact and evidence summary.]"

8E — To the Amerindian community / authorities.

Subject: Our land and [project].

"[Project] affects our titled Amerindian land. As [the community / its authorities], we assert our rights under the Amerindian Act and ask to stand together against it. [Attach evidence.]"

8F — To the oil company / its investors (international).

Subject: Legal, environmental, and reputational risk in [project].

"We are the community affected by [project] at [location]. Its permit conditions are unmet and it threatens our coast and waters, as the courts have already scrutinised. As with the Liza permit, this carries real legal and reputational risk. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: Guyanese community acts to protect its coast and waters from [project].

"The people of [place] depend on [the sea / the coast / our rivers] at [location]. Now [project] threatens them — and the regulator is not enforcing its own permit. We can provide photographs, the permit conditions, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can hold them to account — here's how.

"[Project] threatens [our coast / waters / land]. Two citizens took an oil giant and its regulator to court and won a landmark ruling. With the permit conditions, the courts, our constitutional rights, and international attention behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Read the permit's conditions line by line, and find the unmet one.** That's your sharpest, most proven lever.
2. **Demand the EPA enforce it (8C), and object in any EIA participation (8B).**
3. **Request the documents (8A), and read the EIA for spill, water, and Amerindian-land flaws.**
4. **Photograph everything, with dates and places.**
5. **Get a lawyer (8D)** — the citizen route to court over an unmet condition can reach the oil giant.
6. **Reach the company's investors and the international press (8F/8G), and unite the community (8H).**

Even lean, those six use the permit-condition lever, the courts, and international attention — the tools that forced Exxon's reckoning.

WHEN THE SYSTEM IS TILTED

Guyana's tools are real, but the field is tilted by oil, and you must plan for it.

When the state protects its oil revenue. The government may side with the company, as the Attorney-General did. Don't fold: use the permit conditions and the courts, and take the fight to the company's international investors and reputation, where the state's interest doesn't reach.

When a win is appealed. This is the Collins–Whyte lesson: a first-instance victory can be stayed and overturned. Prepare to carry the case up to the CCJ, and count the reckoning, the exposure, and the pressure as wins even if the final order is narrowed.

When the regulator won't enforce. That's your opening, not your defeat — take the regulator to court to compel enforcement, as Collins and Whyte did.

When Amerindian rights are ignored. The Amerindian Act protects titled land — assert it.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Guyana's oil boom has raised real concerns about the capture of its regulator and the closeness of the state to the oil companies, so this matters.

How to spot it. A regulator that won't enforce its own permit conditions; the state intervening on the company's side; permits or contracts against the public interest; benefits to the connected while communities bear the risk.

Who's supposed to guard against it. The **Auditor General** examines public money. The **courts** can compel the regulator and quash a tainted decision. **Parliament** and its committees scrutinise the oil sector. And Guyana's **press and civil society** have exposed the regulator's failures — as Justice Kissoon's judgment did in devastating terms.

How to fight it safely. Document precisely and factually — the unmet condition, the regulator's failure, the state's alignment, what the law required — and keep clear the line between what you can prove and what

you suspect. Route serious evidence to the Auditor General, the courts, Parliament, and trusted journalists rather than making accusations you can't back. Pair the exposure with the permit-condition case and the international pressure.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the unmet permit condition aims it; the community and lawyers are the muscle; the courts press the case; the international media raises the cost on the company. Together they multiply. One at a time, they stall — and be ready for the appeal.

Early on (weeks 1–8): nail down the project and the coast, water, and Amerindian land it touches; read the permit conditions and find the unmet one; object in the EIA; demand enforcement; request the records; photograph the baseline; get a lawyer.

In the thick of it (months–years): take the EPA to court over the unmet condition, and challenge a defective permit, on up toward the CCJ; assert Amerindian rights; open the international media front.

The long haul (years): carry the litigation and the appeals; keep the community and the international attention alive; hold the line for enforced conditions, real protections, a forced reckoning, exposure, and delay — and expect the state to defend its oil revenue to the end.

FINAL ASSESSMENT

Stopping — or reining in — a destructive project in Guyana can be done: two citizens took an oil supermajor and its regulator to court and won a landmark ruling that the regulator had abandoned its duty. Hold both truths. Guyana's tools are real: an environmental permit whose conditions are enforceable by any citizen; an EIA with participation; a constitutional right to a healthy environment; courts up to the Caribbean Court of Justice; and Amerindian land rights. And the constraints are real: a state now dependent on oil revenue, a government that may side with the company, and first-instance wins that can be overturned on appeal.

Here's the discipline that wins what can be won. Read the permit's conditions line by line and find the one that's unmet — then take the regulator to court to enforce it, as Collins and Whyte did over Condition 14. Take part in the EIA, invoke the constitutional right to a healthy environment, and assert Amerindian land rights where they apply. Carry the story to the oil giant's investors and the world, where its reputation is most exposed and the state's oil interest doesn't reach. Be ready for the appeal, and count enforced conditions, real protections, a forced reckoning, exposure, and delay as wins alongside an outright stop. That's what two citizens did — the permit's own words, the courts, and a judge willing to say the regulator had failed. So can you.